

Calendar Line # 9
Case Name Theresa Perry vs Emergency Housing Consortium et al
Case No. 25CV482065
Motion to Strike Fraudulent Attorney’s Lien and Compel Settlement Disbursement <u>I. BACKGROUND</u> On December 15, 2025, Plaintiff Theresa Perry filed a Complaint against “Defendants Emergency Housing Consortium[,] Home First Services[,] Sabrato Family Living Center[,] John C. Miller Jr. Esq (State Bar 143323) [,] E. Forrest Shryock Jr. [,] Vogl Meredith Burke Streza LLP[,] Umid Babjonov, Esq. [,] Vogl Meredith Burke[,] Jane Hart Esq. [,]Vogl Meredith Burke[,]and Thomas S Gelini, Esq. [,] and Kevin Lewis (collectively “Defendants”). Plaintiff seeks monetary and punitive damages. Plaintiff does not allege specific causes of actions, but asserts fraudulent liens. No proof of service of the summons and complaint has been established. Defendants have not filed Answer or filed responsive pleadings. On January 8, 2026, Plaintiff filed this present Motion to Strike Fraudulent Attorney’s Liens and Compel Settlement Disbursement. The motion was accompanied by a proof of electronic service to John C. Miller, Jr., Esq, E. Forrest Shyrock, Jr., Esq., Jane Hart, Esq., Umid Babajanov, Esq., Thomas S. Gellini, Esq., Kevin Lewis, Shannon Pinckney, Sara Steele, Taylor Alves, and Jessica McDonald on that same day. The Court has reviewed Plaintiff’s notice and motion (totaling 10 pages); Declaration of Theresa Perry (totaling 4 pages); proof of service; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 415.10 provides the requirements of personal service of summons and the complaint as follows: A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery. The date upon which personal delivery is made shall be entered on or affixed to the face of the copy of the summons at the time of its delivery. However, service of a summons without such date shall be valid and effective. (Code Civ. Proc., § 415.10). Code of Civil Procedure section 415.20 governs substituted service. Subdivision (a) applies to substituted service at an office or usual mailing address. Subdivision (b) applies to substituted service at a person’s residence and provides, in part: If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served ... a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons

and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing. (Code Civ. Proc., § 415.20, subd. (b)).

Code of Civil Procedure section 416.10 provides:

A summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods:

(a) To the person designated as agent for service of process as provided by any provision in Section 202, 1502, 2105, or 2107 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable).

(b) To the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process.

(c) If the corporation is a bank, to a cashier or assistant cashier or to a person specified in subdivision (a) or (b).

(d) If authorized by any provision in Section 1701, 1702, 2110, or 2111 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable), as provided by that provision. (Code Civ. Proc., § 416.10).

III. ANALYSIS

Here, the case is not yet at issue as service of the summons and complaint has not been effectuated under Code of Civil Procedure sections 415.10, 415.20, and 416.10. Defendants have not waived service or consented to electronic service. No Answers or responsive pleadings have been filed.

Give this posture, Plaintiff's proof of electronic mail service of this motion is not proper pursuant to California Code of Civil Procedure sections 1010.6 and 1005(c).

Based on these deficiencies, the Court cannot continue to consider the merits of the motion.

IV. CONCLUSION

Based on the foregoing, the motion is DENIED.

The Court will prepare the formal Order.